

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1550

By: Patzkowsky

AS INTRODUCED

An Act relating to vehicle excise tax; amending 68 O.S. 2021, Section 2104, as amended by Section 237, Chapter 282, O.S.L. 2022 (68 O.S. Supp. 2024, Section 2104), which relates to the value of vehicles; modifying the calculation to determine a vehicle's value; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 68 O.S. 2021, Section 2104, as amended by Section 237, Chapter 282, O.S.L. 2022 (68 O.S. Supp. 2024, Section 2104), is amended to read as follows:

A. The value of any motor vehicle, except a manufactured home, for the purposes of the excise tax levied by Section 2103 of this title, shall be determined as of the time the person applying for a certificate of title thereto obtained either ownership or possession of the vehicle, which shall be presumed to be the actual date of the sale or other transfer of ownership, and assignment of the certificate of title.

1 B. The value of any vehicle, for purposes of the excise tax
2 levied by Section 2103 of this title, shall be the actual sales
3 price of such a vehicle before any discounts or credits are given
4 for a trade-in. However, the value of the vehicle prior to the
5 subtraction of such discounts or credits for a trade-in shall be
6 required to be within ~~twenty~~:

7 1. Twenty percent (20%) of the average retail price value of
8 such vehicle as listed in the automotive reference material
9 prescribed by Service Oklahoma, ~~if the vehicle has an odometer~~
10 reading of less than one hundred thousand (100,000) miles;

11 2. Forty percent (40%) of the average retail price value of
12 such vehicle as listed in the automotive reference material
13 prescribed by Service Oklahoma if the vehicle has an odometer
14 reading equal to or greater than one hundred thousand (100,000)
15 miles, but not greater than two hundred thousand (200,000) miles;

16 3. Fifty percent (50%) of the average retail price value of
17 such vehicle as listed in the automotive reference material
18 prescribed by Service Oklahoma if the vehicle has an odometer
19 reading equal to or greater than two hundred thousand and one
20 (200,001) miles.

21 The actual sales price of the vehicle, which total shall be the
22 basis of the motor vehicle excise tax, as well as the number of
23 tires on the vehicle and the tire rim diameters, shall be entered on
24

1 the bill of sale furnished by the seller to the purchaser, or on
2 such other form as may be prescribed by Service Oklahoma.

3 Upon receipt of the properly completed bill of sale or other
4 form as prescribed by Service Oklahoma, and the payment of all
5 applicable taxes and fees, Service Oklahoma or an appointed licensed
6 operator shall issue a vehicle certificate of title in accordance
7 with the provisions of the Oklahoma Vehicle License and Registration
8 Act.

9 SECTION 2. This act shall become effective July 1, 2025.

10 SECTION 3. It being immediately necessary for the preservation
11 of the public peace, health or safety, an emergency is hereby
12 declared to exist, by reason whereof this act shall take effect and
13 be in full force from and after its passage and approval.

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15 60-1-10276 AO 12/17/24
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